

21STCV17972 21STCV17972

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Case Number: 21STCV17972 Hearing Date: August 19, 2026 Dept: 514

Watson v. Arizona Townhomes Association

21STCV17972

Defendant's Motion to Strike Memorandum of Costs

Tentative Ruling

The motion is denied.

Background

This case arises out of allegations of water intrusion into a townhouse owned by Plaintiff Mina Watson ("Plaintiff").

On May 12, 2021, Plaintiff filed the complaint in this action.

On September 10, 2021, Plaintiff filed a First Amended Complaint (the "FAC"). In the FAC, Plaintiff named as defendants Arizona Townhomes Association ("Defendant") and Does 1 through 20 and asserted causes of action for: (1) breach of contract, (2) negligence, (3) intentional infliction of emotional distress, (4) nuisance, (5) breach of fiduciary duty, and (6) declaratory relief.

On November 8, 2021, the default of Defendant was entered.

On April 11, 2022, the Court, at the request

of Plaintiff, dismissed Does 1 through 20.

On August 9 and October 14, 2022, the Court denied two motions filed by Defendant to set aside the default.

On February 15, 2023, the Court entered a default judgment against Defendant. The judgment includes (among other things) an award of attorney's fees in the amount of \$110,976 and order for Defendant to complete the necessary repairs "to prevent leaks to Plaintiff's Property" within three months.

Defendant appealed. On November 18, 2024, the Court of Appeal affirmed. The remittitur issued on February 6, 2025.

In 2023, Plaintiff filed five Memoranda of Costs After Judgment; in each one, she claimed (among other things) attorney's fees as post-judgment costs.

On February 7, 2025, Plaintiff filed another Memorandum of Costs After Judgment, again claiming attorney's fees as post-judgment costs.

On January 9, 2026, Plaintiff filed another Memorandum of Costs After Judgment, and again Plaintiff claimed attorney's fees as post-judgment costs.

Most recently, on May 19, 2026, Plaintiff filed another Memorandum of Costs After Judgment. This was her eighth Memorandum of Costs After Judgment, and once again Plaintiff claimed attorney's fees as post-judgment costs.

On June 1, 2026, Defendant filed this motion to strike the Memorandum of Costs filed on May 19, 2026. Plaintiff filed an opposition on July 2, and Defendant filed a reply on July 9.

The hearing on the motion was initially set for July 16, 2026, and was continued by the Court.

Discussion

In Plaintiff's most recent Memorandum of Costs After Judgment, filed on May 19, 2026, Plaintiff claims \$4,808.70 in post-judgment attorney's fees incurred during the period from January 9 to May 17, 2026.

Defendant now moves to strike this Memorandum of Costs After Judgment. Defendant's sole argument is that Plaintiff was required to file a noticed motion to claim these attorney's fees. (Mem., at pp. 2-3.)

A prevailing party is generally entitled to recover costs as part of the judgment. (Code Civ. Proc., § 1032, subd. (b).) Under Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), attorney's fees are allowable as costs when authorized by contract. The judgment in this case included such an award of attorney's fees as costs.

Here, however, the issue relates to post-judgment costs, not costs that are properly included in the judgment.

In the Enforcement of Judgments Law (the "EJL"), Code of Civil Procedure section 685.040 provides that a judgment creditor is entitled to recover "the reasonable and necessary costs of enforcing a judgment." Section 685.040 also states:

"Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5."

(Code Civ. Proc., § 685.040.)

That is precisely the situation here. The underlying judgment contained an award of attorney's fees under section 1033.5, subdivision (a)(10)(A), and so Plaintiff can recover attorney's fees incurred in enforcing the judgment. (See *Nash v. Aprea* (2023))

Defendant does not appear to disagree with the abstract principle that a judgment creditor may, in appropriate circumstances, recover post-judgment attorney's fees incurred in enforcing the judgment. But Defendant argues that the only proper procedure for Plaintiff to recover those fees here is through a noticed motion.

Defendant's argument is based on Code of Civil Procedure section 685.080 (misidentified as section 685.050 in its moving papers). Section 685.080 expressly provides for a motion to recover costs, stating that a judgment creditor "may claim costs authorized by Section 685.040 by noticed motion." (Code Civ. Proc., § 685.080, subd. (a).) Defendant argues that because Plaintiff did not file a noticed motion under section 685.080, she cannot recover her fees, and therefore the Memorandum of Costs After Judgment filed on May 19, 2026, should be stricken.

Defendant ignores, however, another section of the EJJ – section 685.070, which immediately precedes section 685.080. Code of Civil Procedure section 685.070 provides an alternative method for a judgment creditor to claim certain costs: by filing a Memorandum of Costs. (Code Civ. Proc., § 685.070, subd. (b).) Among the costs that "may" be claimed under the procedure set forth in section 685.070 are "Attorney's fees, if allowed by Section 685.040." (Code Civ. Proc., § 685.070, subd. (a)(6).)

Reading these two provisions of the EJJ together, it appears that the Legislature authorized two different procedural methods for a judgment creditor to claim attorney's fees recoverable under section 685.040: the creditor may do so through a Memorandum of Costs (authorized by section 685.070) or through a noticed motion (authorized by section 685.080).

The use of the word "may" in both subdivision (a) of section 685.070 and subdivision (a) of section 685.080 reinforces this interpretation of the EJJ. The Legislature has provided two options to a judgment creditor to claim at least some costs; neither is the sole or

exclusive method to claim attorney's fees recoverable under Code of Civil Procedure section 685.040.

In sum, Plaintiff used a permissible procedural method to claim her post-judgment attorney's fees.

Defendant disclaims any intent to bring a motion to tax costs (see Reply, at p. 2), and so the Court declines to interpret the motion to strike as a motion to tax costs.

The motion of Defendant to strike the Memorandum of Costs filed on May 19, 2026, is denied.

Conclusion

The Court DENIES the motion of Defendant Arizona Townhomes Association to strike the Memorandum of Costs After Judgment filed on May 19, 2026 by Plaintiff.

Plaintiff, as the prevailing party, is ordered to give notice.